

Judicial Decorum in the Digital Age



Source: TH

Why in News?

The **Chief Justice of India (CJI)** issued a formal clarification following public outrage over sharp oral observations made during a Supreme Court hearing. The controversy intensified on social media, where satirical movements such as the mock **"Cockroach Janta Party"** emerged after the CJI used terms like **"cockroaches"** and **"parasites"** to criticize unmeritorious litigation and the alleged infiltration of professions by individuals holding fake degrees.

What Standards and Doctrines Govern Judicial Speech in India?

- **The Restatement of Values of Judicial Life (1997):** Adopted by the Supreme Court Full Court in 1997, **Item 8** of **Restatement of Values of Judicial Life (1997)** mandates that a judge should not enter into public debates or express views in **public on political matters or issues pending judicial determination**.
- **Bangalore Principles of Judicial Conduct (2002):** Endorsed by the **United Nations**, as a complement to the **1985 United Nations Basic Principles on the Independence of the Judiciary**, it constitutes the foundational international framework on judicial ethics and conduct.
 - It emphasizes that a judge's behavior must constantly reaffirm public faith in the judiciary's impartiality.
- **The Vijayabhaskar Standard (2021):** The Supreme Court formally codified the boundary between **bench speech and judicial decree** in **Chief Election Commissioner vs. M.R. Vijayabhaskar**. Adjudicating on harsh oral remarks made by the Madras High Court during the Covid-19 pandemic, the Court established a dual doctrinal standard:
 - **The Epistemic Utility of Bench Speech:** Acknowledged the necessity of judicial questioning to foster a "spontaneity of thought" and provide clarity during hearings.
 - **The Primacy of the Written Record:** Established unequivocally that **"the formal opinion of a judicial institution is reflected through its judgments and orders, not its oral observations during the hearing."**
- **A.M. Mathur v. Pramod Kumar Gupta (1990):** The Supreme Court held that **"Judicial restraint and discipline are as necessary** to the orderly administration of justice as they are to the effectiveness of the army."

- The Court warned that judges must not use the **bench as a pulpit to express personal grievances, "spasmodic sentiment," or unregulated anger.**
- **Modern Context:** In *Supriyo vs Union of India (2023)* , oral observations by the bench regarding non-absolute concepts of gender led the public to believe the court would read same-sex unions into the [Special Marriage Act, 1954](#) .
- However, the final written judgment went the **opposite way, proving that oral testing does not equate to the final judicial stance.**

International Judicial Precedents

- **The Magna Carta of Judges (Council of Europe, 2010):** Drafted by the Consultative Council of European Judges (CCJE), it emphasizes that judicial independence requires judges to **act impartially and fairly.**
 - It implicitly restrains judges from using their platform to inflict reputational harm outside the formal delivery of justice.
- **The Cardozo Standard (United States, 1921):** In his foundational *Storrs Lectures* at Yale, Justice Benjamin Cardozo established the jurisprudential constraint on judicial utterance.
 - He argued that a judge must draw inspiration from "**consecrated principles**" and exercise discretion disciplined by the system, strictly avoiding "**spasmodic sentiment**" or unregulated benevolence.

What are the Implications of the Intemperate Judicial Remarks?

- **Erodes Public Trust:** Intemperate remarks create perceptions of bias and prejudgment, violating the core tenet of the Bangalore Principles that a judge must maintain the appearance of strict impartiality.
- **Undermines Procedural Justice:** Litigants accept legal outcomes when they feel respected; harsh courtroom language makes even legally sound judgments appear fundamentally unfair.
- **Conflates Dialogue with Decree:** In the era of real-time digital reporting, exploratory bench questions are easily misconstrued by the public as final judicial opinions, weakening the *Vijayabhaskar* standard.
- **Induces a Chilling Effect:** Humiliating rhetoric from the bench deters vulnerable citizens, minority groups, and young advocates from approaching the courts for relief.
- **Jeopardizes Judicial Independence:** Unrestrained speech triggers public backlash and invites political demands for external regulation, threatening the very autonomy the judiciary seeks to protect.

What is the Way Forward for Maintaining Judicial Decorum?

- **Updating the 'Restatement of Values':** The *Restatement of Values of Judicial Life (1997)* requires an update. A newly drafted "**Charter of Judicial Conduct for the Digital Age**" must explicitly define the parameters of bench speech, particularly concerning live-streamed proceedings and interactions that may trigger social media virality.

- The **National Judicial Academy** should rigorously integrate the **UN Bangalore Principles** into continuous judicial education, focusing heavily on the psychological impact of courtroom orality in the digital age.
- **Strengthening In-House Accountability:** The judiciary should activate stronger **internal corrective mechanisms** where the Chief Justice or peer committees can advise judges against repeated intemperate remarks, ensuring **accountability without compromising judicial independence**.
 - The Constitution does not directly regulate oral judicial remarks; restraint is maintained through judicial conventions, ethical standards, and institutional discipline.
- **Responsible Legal Journalism:** Media organizations and legal correspondents should contextualize oral observations as part of judicial questioning rather than presenting them as final judicial opinions, ensuring balanced and accurate reporting.
- **Official AI-Based Court Transcripts:** AI-driven real-time transcription of court proceedings should be expanded to prevent media misreporting, provide authentic public records, and discourage careless oral observations.

Conclusion

As the Supreme Court has previously noted, the most significant threat to the judiciary often comes from within. **Judicial independence and judicial accountability are not antithetical; they are symbiotic.** The authority of a constitutional court rests not on the fear of contempt, but on the **public's enduring respect for its quiet, reasoned, and dignified dispensation of justice.**

Drishti Mains Question:

Judicial independence does not mean judicial immunity from criticism. Discuss in the context of judicial speech and decorum in India.

[Watch Video on YouTube: [▶ https://www.youtube.com/embed/rR1wVQeCvZY](https://www.youtube.com/embed/rR1wVQeCvZY)]

Frequently Asked Questions (FAQs)

1. What is the significance of the Restatement of Values of Judicial Life, 1997?

It lays down ethical standards for judges, including restraint from public comment on political or pending matters, and promotes judicial impartiality.

2. What does the Vijayabhaskar doctrine emphasize?

It clarifies that a court's formal view is reflected in its written judgment and orders, not necessarily in oral remarks made during hearings.

3. What reforms are suggested for maintaining judicial decorum?

The article suggests updated judicial ethics for the digital age, stronger in-house accountability, better training, responsible media reporting, and official AI transcription of hearings.

Failure of the UN NPT Review Conference



Source: TH

United Nations conference to review the **Non-Proliferation of Nuclear Weapons Treaty (NPT)** ended without a consensus document due to a severe diplomatic standoff between the **United States and Iran over Iran's nuclear program**.

- The **conference** failed to adopt a final document primarily because of a draft provision explicitly stating that **Iran “can never seek, develop or acquire any nuclear weapons.”**
 - This marks the **3 rd consecutive failure** of an NPT review conference. Notably, the previous review in **August 2022 collapsed after Russia blocked the agreement** over textual references to its occupation of Ukraine's **Zaporizhzhia nuclear power plant**.
- **The US-Iran Conflict:** The US accused Iran of violating its treaty obligations by denying the **International Atomic Energy Agency (IAEA)** access to its nuclear sites following recent military strikes.
 - Conversely, Iran refused to accept the draft, demanding instead that the **US and Israel be condemned for their military airstrikes** on Iranian nuclear facilities, which it views as violations of international law.
- **UN's Standpoint:** Acknowledging the "elevated risk posed by nuclear weapons," the **UN Secretary-General** urgently appealed to all countries to utilize diplomacy and negotiation to lower nuclear risks and eliminate the threat.
- **NPT** : The Treaty on the Non-Proliferation of Nuclear Weapons (NPT) was approved by the UN General Assembly on 12 th June 1968 and came into force on 5 th March 1970.
 - It is the only multilateral treaty that seeks to prevent the **spread of nuclear weapons, promote peaceful use of nuclear energy, and advance global nuclear disarmament**.
 - The treaty recognizes only those countries that possessed nuclear weapons before 1 st January 1967 as **Nuclear-Weapon States (NWS)** namely the United States, Russia (formerly USSR), the United Kingdom, France, and China.
 - Non-nuclear states agree **not to acquire nuclear weapons, while nuclear states commit not to transfer them**.
 - With 191 members, the NPT is monitored by the **International Atomic Energy Agency** for compliance.
 - India has never signed the NPT, arguing that it is discriminatory. Instead, India follows a **“No First Use” (NFU) doctrine** and supports universal, non-discriminatory and verifiable nuclear disarmament.

Treaties Against Nuclear Weapons

Part - I

Nuclear Weapons

- The most dangerous weapons on earth; a **bomb or missile that uses nuclear energy to cause an explosion**.
- Nuclear weapons release energy either by **nuclear fission (atomic bombs)** or **nuclear fusion (hydrogen bombs)**.
- Even a single weapon is potent of **destroying a whole city**, potentially **killing millions**, **jeopardising the natural environment** and lives of future generations.
- They were used for the **first and last time in WW-II** by the US in 1945 on **Hiroshima and Nagasaki**.

Treaty on the Non-Proliferation of Nuclear Weapons (NPT 1970)



- **Objective:**
 - Prevent the spread of nuclear weapons and its technology
 - Foster peaceful uses of nuclear energy
 - Further the goal of nuclear disarmament
- **Member States:**
 - 191 with **5 nuclear-weapon states (NWS)** (US, Russia, UK, France & China)
- **Nuclear-Weapon States:**
 - Those who **manufactured & exploded** a nuclear weapon or nuclear explosive device **before 1st January 1967**
- **Significance:**
 - **Only binding treaty** to the goal of disarmament by the NWS
- **India and NPT:**
 - India (along with Pakistan, Israel, North Korea, and South Sudan) is **not a member**
 - Opposes it as a **discriminative disarmament policy**
 - India's policy - **No First Use against NWS** and **no use against non-NWS**
- **NPT Review Conference:**
 - **Undertakes review** of the treaty's implementation **quinquennially**



Drishti IAS



Read more: [Iran's Nuclear Threshold and NPT Compliance](#)

Oreshnik Missile



Source: TH

Russia reportedly used its **hypersonic Oreshnik ballistic missile** during a large-scale drone and missile attack on Ukraine, marking the weapon's third reported use in the Russia-Ukraine war.

- **About:** The Oreshnik is a Russian hypersonic intermediate-range **ballistic missile**, capable of carrying both conventional and nuclear warheads, and is believed to be linked to the RS-26 Rubezh missile system.
 - Its name means “ **hazel tree**” or “**hazelnut tree**” in Russian .
- **Features:** Its major feature is the ability to carry multiple warheads, enabling it to strike different targets or widen the area of impact.
 - Multiple-warhead capability can **complicate air defence interception** and is usually associated with **longer-range intercontinental ballistic missiles**.
- **Range:** Russia claims that the missile can travel at around **Mach 10**, or nearly ten times the speed of sound, making it difficult to intercept through existing missile defence systems.
- **Impact:** The missile is designed to strike military infrastructure, command centres, air bases and deeply buried targets at very high speed, with Russia claiming that multiple Oreshnik missiles could cause **destruction comparable to a nuclear strike**.

Read More: [Missile Defence in the US-Israel-Iran Conflict](#)